

25VECV04778 25VECV04778

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-17

Motion: MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

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Case Number: 25VECV04778 Hearing Date: September 17, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

PATRICIO ANTHONY FUENTES,

Plaintiff,

vs.

PAWPARRAZZI DOGS, LLC, a

corporation; GISELLE'S LEGACY, a non

profit corporation; KRISTA CASTRO, an

individual; SHERRIE CALDERON, and

individual; LOVINJEET SINGH, an

individual; and DOES 1 to 50, inclusive,

Defendants.

CASE NO: 25VECV04778

[TENTATIVE] ORDER RE:

MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

Dept. W

8:30 a.m.

September 17, 2026

NO PROOF OF SERVICE

[TENTATIVE] ORDER: The Court DENIES Moving Defendants Motion to Set Aside Entry of Default due to lack of service.

Background

This is a dog bite personal injury case. On August 26, 2023, Plaintiff Patricio Fuentes was allegedly attacked by a dog named Koda while walking in Warner Park.

At the time of the incident, Koda was being walked by Moving Defendant Lovinjeet Singh. Ms. Singh is an employee of BAW Foundation Capone's Coalition Inc., a dog rescue foundation. Ms. Singh was recruited as a volunteer dog walker by Defendant Giselle's Legacy via a social media ad. Ms. Singh was allowed to check Koda out of Defendant Pawparazzi Dogs, LLC, and take him for a walk – which is when the alleged incident occurred.

On August 22, 2025, Plaintiff brought suit against defendants Sherrie Calderon, Giselle's Legacy, Krista Castro, Pawparazzi Dogs, LLC, as well as Moving Defendant Lovinjeet Singh. Plaintiff alleges two causes of action against all defendants: 1) negligence and 2) strict liability under CIV § 3342.

On March 13, 2026, default was entered against Moving Defendant Lovinjeet Singh

On May 28, 2026, Moving Defendant moved to have this default judgment set aside.

On August 24, 2026, the Court heard this motion, but continued it due to lack of proper service on Plaintiff.

Now, the Court once again hears the motion.

Discussion

Legal Merits

Moving Defendant moves this Court to set aside the March 13, 2026, default judgment, pursuant to CCP § 473.5 and § 473(d). (Mot. to Set Aside, pp. 1-2.) Moving Defendant asserts that she did not receive actual notice of this lawsuit. (Ibid.)

A default judgment can be set aside under CCP § 473.5 if: 1) the motion is timely – meaning it was filed and served within the earlier of two years after entry of a default judgment or six months after service of the default judgment – and 2) the court determines that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (CCP § 473.5(a),(c).)

Timeliness

Here, Moving Defendant's motion is timely. Default was entered on March 13, 2026. Moving Defendant brought this Motion to Set Aside on May 28, 2026, just over three months later. Thus, this motion is timely under either prong of CCP § 473.5(a).

Lack of Notice

Additionally, Moving Defendant provides evidence that their failure to appear in this case was due to lack of notice. Specifically, Moving Defendant provides a sworn declaration, stating that, "I first became aware of this lawsuit on or about May 27, 2026, when I received notice regarding a request for entry of default and related communications." (Singh Decl. ¶ 4.) Moving Defendant also states that, "the alleged service was made to a P.O. Box address and not by personal service my residence or place of business, and I did not sign any acknowledgment of service." (Id. ¶ 6.) Finally, Moving Defendant states that, "I did not avoid service and was not attempting to evade notice of this lawsuit." (Id. ¶ 7.) Notably, this Court is aware of a parallel case in this department based on these same facts. (See 24VECV04071.) Moving Defendant is also a defendant in that case, where she has both appeared and submitted filings. (See, 24VECV04071, Answer, 10/17/25.) Thus, The Court is convinced that Moving Defendant was not properly served, and is not evading service.

For these reasons, the Court finds that Moving Defendant's lack of notice was not due to intentional evasion of service or inexcusable neglect.

Lack of Proof of Service

However, despite the fact that Moving Defendant's motion is meritorious, the Court must deny this motion. Under CCP § 1005(a), "written notice shall be given . . . for the following motions . . . Motion to Set Aside Default or Default Judgment and for Leave to Defend Actions pursuant to Section 473.5." (CCP § 1005(a)(10).) Here, Moving Defendant submits no proof that this motion to set aside default was served upon Plaintiff. Thus, the motion is procedurally improper.

The Court initially noted this issue on August 24, 2026, when it first heard this motion. (Minute Order 8/24/26.) The Court continued the motion to allow Moving Defendant to properly serve Plaintiff. (Ibid.) Moving Defendant has yet to file proof of service with the Court. Thus, this motion is DENIED.

Conclusion

The Court DENIES Moving Defendants Motion to Set Aside Entry of Default due to lack of service.

IT IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 17, 2026

Judge of the Superior Court